Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

PARLIAMENT RESOLUTION NO. 457

RESOLUTION RESPECTFULLY REQUESTING THE PHILIPPINE JUDICIAL ACADEMY TO OFFER A SEPARATE PRE-JUDICATURE PROGRAM FOR APPLICANTS FOR JUDGESHIP POSITIONS IN THE SHARI'AH COURTS WITHIN THE BANGSAMORO AUTONOMOUS REGION IN MUSLIM MINDANAO

WHEREAS, Section 6, Article VIII of the 1987 Constitution provides that the Supreme Court shall have administrative supervision over all courts and the personnel thereof;

WHEREAS, Section 2, Article X of the Republic Act No. 11054, otherwise known as *"Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao"*, states that the *Shari'ah* Courts within the Bangsamoro territorial jurisdiction shall form part of the Philippine judicial system subject to the supervision of the Supreme Court;

WHEREAS, Article 137, Title I, Book Four of the Presidential Decree No. 1083 states that *Shari'ah* Courts and the personnel thereof shall be subject to the administrative supervision of the Supreme Court;

WHEREAS, Section 8 (5), Article VIII of the Constitution, provides that the authority to recommend appointees to the Judiciary is vested in the Judicial and Bar Council (JBC);

WHEREAS, the JBC announced the opening for the application or recommendation for the judgeship positions in Regions IX to XII on May 19, 2023;

WHEREAS, pursuant to Section 2, Rule 3 of the 2020 Revised JBC Rules provides that all applicants, except those applying for judgeship positions in the *Shari'ah* Circuit Courts outside the Bangsamoro Autonomous Region in Muslim Mindanao (BARMM), are required to have undergone, completed, and passed the Pre-Judicature Program (PJP) of the Philippine Judicial Academy (PHILJA);

WHEREAS, Section 3 of Republic Act No. 8557 provides that the PHILJA serves as the training school for justices, judges, court personnel, lawyers, and aspirants to judicial posts;

WHEREAS, *Shari'ah*, as a special field of law, applies provisions of Presidential Decree No. 1083, otherwise known as *"Code of Muslim Personal Laws in the Philippines"*, as substantive law and a Special Rules of Procedure as procedural law;

WHEREAS, the PJP syllabus mostly covers regular Philippine law subjects and not the laws that apply to *Shari'ah* as aforementioned;

WHEREAS, offering a separate Pre-Judicature Program for *Shari'ah* applicants to judgeship positions in various *Shari'ah* Courts within BARMM from the PJP requirement will encourage competent and qualified candidates to apply and consequently aid in the administration of justice:

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority Parliament, To respectfully request the Philippine Judicial Academy to offer a separate Pre-Judicature Program for

applicants for the judgeship positions in the *Shari'ah* Courts within the Bangsamoro Autonomous Region in Muslim Mindanao.

RESOLVED, FURTHER, To forward this Resolution to the Judicial and Bar Council, for its consideration.

ADOPTED, *Dhu Al-Qa'dah* 14, 1445/May 22, 2024.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. PANGALIAN M. BALINDONG
Speaker

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